



CREATION, CONVERSION, DIVISION, MERGER, AND ABOLITION OF LGUs





Authority to Create

SEC. 6, RA 7160 and
SEC 10, RA 11054

- Congress
- Local Sanggunian
- Parliament





Authority to Create

SEC. 6, RA 7160 and
SEC 10, RA 11054

- No P/C/M/B shall be created, divided, merged, abolished or its boundary substantially altered, **except in accordance with the criteria established in the LGC** and subject to approval by a majority of the votes cast in a **plebiscite** in the political units directly affected (SEC. 10, ART X, 1987 CONSTITUTION)





Creation, Conversion, Division, Merger or Dissolution of LGUs

SECS. 7-10, RA 7160

• REQUIREMENTS

- Law
- Verifiable Indicators of Viability
- Plebiscite
- No conflict arises with any provision of the Constitution
(SEMA v COMELEC [2005])





VERIFIABLE INDICATORS OF VIABILITY

LGU	INCOME	POPULATION	LAND AREA
Barangay (P)	x	2k / 5k (MM; Special Metropolitan Political Subdivision and HUCs	x
Municipality (LIP)	2.5M (Ave for 2 consecutive preceding years)	<u>And</u> 25K	<u>And</u> 50 sq Km except if an island
Component City (I + P or LA)	100M per RA 9009 (June 30, 2001) [exclusive of IRA]	<u>And</u> 150k	<u>Or</u> 100 sq km
HUC (IP)	50M (inc of IRA)	<u>And</u> 200k	
Province (I+P or LA)	20M (inc of IRA)	<u>And</u> 250k	<u>Or</u> 2k sq km contiguous territory (Except: Art 9 [2], IRR – with more than one island [Non-Contiguity])





PLEBISCITE...to use people's voice as a check against the political practice of gerrymandering

SC said there is no better check against this excess committed by the political representatives of the people themselves than the exercise of direct people power

- Conducted “in the political units directly affected”
- It means that residents of the political entity who would be **economically dislocated by the separation of a portion** have a right to vote in said plebiscite (**Miranda v Aguirre, GR No. 133064, Sept 16, 1999**)





PLEBISCITE...to use people's voice as a check against the political practice of gerrymandering

- Participation of residents of the original LGU and not just those residing in the LGU sought to be created (**Tan v COMELEC, 142 SCRA 727 [1986]**)
- Conversion of a CC into HUC, the SC held that all the qualified voters of the province should participate in the plebiscite (**Umali v COMELEC, April 22, 2014**)





PLEBISCITE...to use people's voice as a check against the political practice of gerrymandering

- Plebiscite is required in cases of conversion (downgrading) of an independent component city into mere component city of a province. (**Miranda v Aguirre, GR No. 133064, Sept 16, 1999**)





CAWALING v COMELEC

GR No. 146319 and 146342, Oct 26, 2001

- Creation of the City of Sorsogon was challenged on the ground that according to Sec 450, RA 7160, a component city may be created ONLY by converting “a municipality or a cluster of barangays” not by merging 2 municipalities, as per the provisions of RA 8806.
- The SC disagreed. According to SC the phrase “municipality or a cluster of barangays may be converted into a CC” is NOT a criterion, BUT SIMPLY ONE OF THE modes BY WHICH A CITY may be created. Sec. 10, Art X, Constitution allows the merger of LGUs to create a P/C/M/B in accordance with the criteria established by the LGC 1991





Abolition of LGUs

- Whenever any or all of the verifiable indicators of viability are “irreversibly reduced to less than the minimum standards” required by the Code for its creation or conversion, the LGU concerned may be abolished.
- Whenever an LGU is abolished, it is a requirement that the province, city, municipality or barangay with which it will be incorporated or merged should be specified in the measure directing such abolition.





Naming of LGUs and Public Places, Streets and Structures

SECTION 13, RA
7160

Delegated by Congress to 5 classes of Sanggunians:

Sangguniang Panlalawigan
Sangguniang Panlungsod of HUCs
Sangguniang Panlungsod of ICCs
Sangguniang Panlungsod of CCs
Sangguniang Bayan of the Municipalities





Historical Commission Consultation

SECTION 13, RA 7160

Delegated by Congress to 5 classes of Sanggunians:

In the exercise of this delegated power:

REQUIREMENTS:

1. CONSULTATION with Historical Commission
2. RECOMMENDATION of the sanggunian concerned if the name of LGU is changed





Historical Commission Consultation

SECTION 13, RA 7160

Delegated by Congress to 5 classes of Sanggunians:

In the exercise of this delegated power:

REQUIREMENTS:

3. RECOMMENDATION of the LSB concerned if the name of a public school is changed
4. RECOMMENDATION of the LHB concerned if the name of a public hospital, health center and other health facilities is changed





Historical Commission Consultation

SECTION 13, RA 7160

Delegated by Congress to 5 classes of Sanggunians:

In the exercise of this delegated power:

REQUIREMENTS:

5. If the name of a LGU or public place, street or structure has historical, cultural or ethnic significance, it shall not be changed **UNLESS** there is a unanimous vote of the sanggunian concerned for that purpose





Historical Commission Consultation

SECTION 13, RA 7160

Delegated by Congress to 5 classes of Sanggunians:

In the exercise of this delegated power:

REQUIREMENTS:

5. Plebiscite is required only if the name being changed is that of a LGU
6. The Office of the President, the representative of the legislative district and the Bureau of Posts shall be notified





Living Person's Names Barred

SECTION 13, RA 7160

- **EXCEPTION:** For a JUSTIFIABLE REASON and not oftener than once every 10 years

Article 23, par 7, IRR: Example of an exception

The name of a family in a particular community whose members have significantly contributed to the welfare of the Filipino people may be used even if some members may still be alive





Beginning of Corporate Existence

SECTION 14, RA 7160

GR: Upon **Election** and **Qualification** of its Chief Executive and a majority of the members of its sanggunian (Bagabuyo v COMELEC, GR No. 176970, Dec 8, 2008)

Election – receiving the highest number of votes and proclamation as elected official

Qualification – Having assumed office

EXCEPTION: Date specified by the law or the ordinance creating the LGU





REFERENCES

The Local Government Code Revisited by AQUILINO Q. PIMENTEL JR

Amicus Imperiorum Locorum by ALBERTO C. AGRA

